

SCHEDULE.

ENACTMENTS REPEALED.

Section 12.

Session and Chapter.	Short Title.	Extent of Repeal.
16 & 17 Geo. 5. c. 32.	The Midwives and Maternity Homes Act, 1926.	Part II, section twelve, in subsection (1) of section fourteen the words "and Maternity Homes" in both places where they occur, and subsection (3) of section fourteen.

CHAPTER 39.

An Act to confirm and give effect to certain agreements between representatives of Great Britain, the Irish Free State and Northern Ireland as to the registration and control of medical practitioners and dentists, and to validate certain acts done by the Dental Board.
[22nd December 1927.]

WHEREAS the agreements set out in the Schedule to this Act have been entered into between representatives of Great Britain, the Irish Free State and Northern Ireland, with respect to the registration and control of medical practitioners and dentists, and it is expedient that the said agreements should be confirmed and effect given thereto :

And whereas doubts may arise as to the validity of acts done after the establishment of the Irish Free State by the Dental Board as first constituted under the Dentists Act, 1921 :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this

11 & 12
Geo. 5. c. 21.

present Parliament assembled, and by the authority of the same, as follows :—

Confirma-
tion of
agreement
as to medi-
cal prac-
titioners.

1.—(1) The agreement set forth in Part I of the Schedule to this Act is hereby confirmed, and so far as it relates to Great Britain and Northern Ireland, shall have effect as if enacted in this Act.

(2) For the purpose of giving effect to Article 5 of the said agreement, the Medical Acts shall be subject to the following amendment :—

In the event of a new university being at any time hereafter created in the Irish Free State by Act of the Parliament of the Irish Free State with power to hold qualifying examinations in medicine, surgery and midwifery for the purpose of granting medical diplomas conferring the right of registration in the Irish Free State Medical Register, such qualifying examinations shall be qualifying examinations within the meaning of the Medical Act, 1886, if His Majesty on the recommendation of the General Medical Council is pleased by Order in Council to make a declaration to that effect.

49 & 50 Vict.
c. 48.

Confirma-
tion of
agreement
as to dent-
ists and
validation
of acts of
Dental
Board.

2.—(1) The agreement set forth in Part II of the Schedule to this Act is hereby confirmed and, so far as it relates to Great Britain and Northern Ireland, shall have effect as if enacted in this Act:

(2) For the purposes of the Dentists Acts, 1878 to 1923, in their application to Great Britain and Northern Ireland, anything which since the establishment of the Irish Free State has been done by, to, or before the Dental Board as first constituted under the Dentists Act, 1921, shall be deemed to be as valid and effectual as if the Irish Free State had not been established.

Short title,
interpreta-
tion and
commence-
ment.

3.—(1) This Act may be cited as the Medical and Dentists Acts Amendment Act, 1927.

(2) This Act, so far as it affects the Medical Acts, shall be construed as one with those Acts, and shall be included among the Acts which may be cited as the Medical Acts.

(3) This Act, so far as it affects the Dentists Acts, 1878 to 1923, shall be construed as one with those Acts, and those Acts and this Act, so far as it affects those

Acts, may be cited together as the Dentists Acts, 1878 to 1927.

(4) In this Act, the expression "Medical Acts" means the Medical Acts as amended by any subsequent enactment.

(5) This Act shall come into operation on the passing of this Act:

Provided that, if at the date of the passing of this Act the agreement set out in Part II of the Schedule to this Act has not been confirmed by an Act of the Parliament of the Irish Free State, this Act, so far as it relates to the amendments of the Dentists Acts, 1878 to 1927, effected by that agreement, shall not come into operation until the said agreement has been so confirmed.

SCHEDULE.

PART I.

Section 1.

AGREEMENT BETWEEN GREAT BRITAIN, THE IRISH FREE STATE AND NORTHERN IRELAND AS TO THE REGISTRATION AND CONTROL OF MEDICAL PRACTITIONERS.

1. In this agreement—

the expression "the Medical Acts" means the Medical Act, 1858, and the Medical Act, 1886, and any Acts amending the same;

the expression "the Irish Free State Medical Council" means any Council which may hereafter be established by Act of the Oireachtas of the Irish Free State for the purpose of registering and controlling medical practitioners in the Irish Free State;

the expression "the Irish Free State Medical Register" means any register of medical practitioners which the Irish Free State Medical Council may by any such Act of the Oireachtas be required to keep;

the expression "the General Medical Council" means the Council established under the Medical Acts;

the expression "the General Register" means the Register established under the Medical Acts;

the word "formerly" shall be construed as referring to times previous to the establishment of the Irish Free State and of Northern Ireland.

2.—(1) The nomination of a member of the General Medical Council formerly made for Ireland by His Majesty with the advice of the Privy Council shall henceforth be made by His Majesty in Council on the recommendation of the Governor of Northern Ireland.

(2) The nominations of members of the General Medical Council by Universities and Medical Corporations in Ireland and the election of a member of the General Medical Council by registered medical practitioners in Ireland shall henceforth be made and had in the like manner in all respects as the same were formerly made and had.

3. Subject to the provisions of this agreement and notwithstanding anything contained in the Government of Ireland Act, 1920, the Irish Free State Constitution Act, 1922, or the Irish Free State (Consequential Provisions) Act, 1922, or the Constitution of the Irish Free State (Saorstat Éireann) Act, 1922, passed by the Provisional Parliament of Ireland, or the Adaptation of Enactments Act, 1922, passed by the Oireachtas of the Irish Free State or any Order made under any of those Acts the constitution of the General Medical Council and of the several Branch Councils as formerly existing under the Medical Acts and the powers of holding qualifying examinations and granting diplomas for the purpose of registration in the General Register formerly vested in certain universities and medical corporations in Ireland shall be deemed not to have been affected by the establishment of the Irish Free State or of Northern Ireland, and for the purpose of the preparation and keeping of the General Register the General Medical Council and the Branch Council for Ireland and their respective officers shall have and may exercise in relation to persons, universities, medical corporations, and matters in the Irish Free State or in Northern Ireland all such powers, jurisdictions, and authorities under the Medical Acts as the said Councils respectively and their respective officers formerly had and might exercise under the Medical Acts for that purpose in relation to persons, universities, medical corporations, and matters respectively in Ireland.

4. Any person who is or shall be registered in the General Register shall be entitled, on payment of such fee as may from time to time be prescribed in that behalf by or in pursuance of any Act of the Oireachtas of the Irish Free State, to be registered in the Irish Free State Medical Register :

Provided that—

(a) the fee payable by such persons in respect of such registration shall at no time exceed the fee payable

in respect of registration in the Irish Free State Medical Register by any other person who may be or become entitled to be registered therein; and

- (b) no fee shall be payable in respect of such registration by any person who, on the date of coming into force of the Act of Oireachtas of the Irish Free State establishing the Irish Free State Medical Register, is registered in the General Register and applies for registration in the Irish Free State Medical Register within such time and in such manner as may be prescribed in that behalf by the said or any other Act of the said Oireachtas; and
- (c) no person whose name has been erased from the Irish Free State Medical Register on account of his having been convicted of a felony, misdemeanour, crime or offence or his having been judged by the Irish Free State Medical Council to have been guilty of infamous conduct in a professional respect shall be entitled to be subsequently registered in the said Register solely by reason of his being registered in the General Register; and
- (d) a person not previously registered in the Irish Free State Medical Register shall not be entitled to be registered therein if his name has been erased from the General Register on account of his having been convicted of a felony, misdemeanour, crime, or offence or his having been judged by the General Medical Council to have been guilty of infamous conduct in a professional respect.

5. The Medical Acts shall be amended so as to provide that, in the event of a new university being at any time hereafter created in the Irish Free State by Act of the Oireachtas of the Irish Free State with power to hold qualifying examinations in medicine, surgery, and midwifery for the purpose of granting medical diplomas conferring the right of registration in the Irish Free State Medical Register, such qualifying examinations may be qualifying examinations, within the meaning of the Medical Act, 1886, and any such diploma so granted by such new university shall, upon such examinations becoming qualifying examinations as aforesaid, be regarded as conferring on the possessor thereof the right of registration in the General Register as fully as if such new university had been such a university as is mentioned in subsection (i) of section 3 of the Medical Act, 1886, and the provisions of Part I of that Act relating to qualifying examinations and to medical diplomas shall be read and have effect accordingly.

6.—(1) With a view to preventing the holding of simultaneous inquiries—

- (a) the General Medical Council shall report to the Irish Free State Medical Council every case in which they propose, in connection with the exercise of their disciplinary powers, to hold an inquiry into the conduct in Great Britain or in Northern Ireland of any person registered in the Irish Free State Medical Register, and the Irish Free State Medical Council shall report to the General Medical Council every case in which they propose, in connection with the exercise of their disciplinary powers, to hold an inquiry into the conduct in the Irish Free State of any person registered in the General Register;
- (b) the General Medical Council, upon receipt by them of any such report as aforesaid from the Irish Free State Medical Council, shall have regard to the desirability of postponing inquiry by them into the matter to which such report relates until the inquiry to which such report relates by the Irish Free State Medical Council is completed;
- (c) the Irish Free State Medical Council, upon receipt by them of any such report as aforesaid from the General Medical Council, shall have regard to the desirability of postponing inquiry by them into the matter to which such report relates until the inquiry to which such report relates by the General Medical Council is completed.

(2) The General Medical Council shall report to the Irish Free State Medical Council every case in which disciplinary action resulting in erasure from the General Register is taken by them against a person registered in the Irish Free State Medical Register, and the Irish Free State Medical Council shall report to the General Medical Council every case in which disciplinary action resulting in erasure from the Irish Free State Medical Register is taken by them against a person registered in the General Register.

7. His Majesty's Governments in Great Britain and the Irish Free State respectively shall as soon as possible introduce into their respective Parliaments such legislation as may be necessary to give statutory effect to this agreement, and this agreement shall not take effect until such legislation in both such Parliaments shall have been passed into law.

Signed on behalf
of
Great Britain.
BALFOUR.

Signed on behalf
of the
Irish Free State.
P. MCGILLIGAN.

Signed on behalf
of
Northern Ireland.
R. D. BATES.

PART II.

Sections 2
and 3.AGREEMENT BETWEEN GREAT BRITAIN, THE IRISH FREE
STATE AND NORTHERN IRELAND AS TO THE REGIS-
TRATION AND CONTROL OF DENTISTS.

1. In this agreement—

the expression “the Dentists Acts” means the Dentists Acts, 1878 and 1921, and any Acts amending the same;

the expression “the Dental Board” means the Dental Board established under the Dentists Acts;

the expression “the Medical Acts” means the Medical Act, 1858, and the Medical Act, 1886, and any Acts amending the same;

the expression “the General Medical Council” means the General Council established under the Medical Acts;

the expression “medical authorities” means the bodies and universities who choose members of the General Medical Council;

the expression “the Dentists Register” means the Register established under the Dentists Acts;

the expression “the Irish Free State Dental Board” means any Board which may hereafter be established by Act of the Oireachtas of the Irish Free State for the purpose of registering and controlling dentists in the Irish Free State;

the expression “the Irish Free State Dentists Register” means any register of dentists which the Irish Free State Dental Board may by any such Act of the Oireachtas be required to keep;

the expression “the Irish Free State Medical Council” means any council which may hereafter be established by Act of the Oireachtas of the Irish Free State for the purpose of registering and controlling medical practitioners in the Irish Free State;

the word “formerly” shall be construed as referring to times previous to the establishment of the Irish Free State.

2.—(1) The appointment of a member of the Dental Board as constituted after the expiration of the term of office of the first members of that Board required to be made by the Lord Lieutenant of Ireland shall henceforth be made by the Governor of Northern Ireland.

(2) Subject to the provisions of sub-paragraph (1) of this paragraph, the appointment of the appointed members and the

election of the elected members of the Dental Board as so constituted as aforesaid shall be made and had in like manner in all respects as the same were formerly required to be made and had respectively.

(3) Nothing in this agreement shall affect the tenure of office of any member of the Dental Board who holds office at the date on which this agreement takes effect.

3. Subject to the provisions of this agreement and notwithstanding anything contained in the Irish Free State Constitution Act, 1922, or the Irish Free State (Consequential Provisions) Act, 1922, or the Constitution of the Irish Free State (Saorstát Éireann) Act, 1922, passed by the Provisional Parliament of Ireland, or the Adaptation of Enactments Act, 1922, passed by the Oireachtas of the Irish Free State, or any Order made under any of those Acts the constitution of the Dental Board under the Dentists Acts and the powers of holding examinations for the purpose of testing the fitness of persons to practice dentistry or dental surgery, and of granting certificates of such fitness for the purpose of registration in the Dentists Register formerly vested in the Dental Board or the medical authorities in Ireland shall be deemed not to have been affected by the establishment of the Irish Free State, and for the purpose of the preparation and keeping of the Dentists Register the Dental Board and the General Medical Council and their respective officers shall have and may exercise in relation to persons, medical authorities and matters in the Irish Free State all such powers, jurisdictions and authorities under the Dentists Acts as the said Board and the said Council had and might exercise under the Dentists Acts for that purpose in relation to persons, medical authorities, and matters respectively in Ireland.

4. Any person who is or shall be registered in the Dentists Register shall be entitled, on payment of such fees as may from time to time be prescribed in that behalf by or in pursuance of any Act of the Oireachtas of the Irish Free State, to be registered in the Irish Free State Dentists Register :

Provided that—

- (a) the fees payable by such persons in respect of such registration shall at no time exceed the fees payable in respect of registration in the Irish Free State Dentists Register by any other person who may be or become entitled to be registered thereon; and
- (b) no person whose name has been erased from the Irish Free State Dentists Register on account of his having been convicted of a felony, misdemeanour, crime or offence or having been found guilty of infamous or disgraceful conduct in a professional respect shall be entitled to be subsequently registered in the said

Register solely by reason of his being registered in the Dentists Register; and

- (c) a person not previously registered in the Irish Free State Dentists Register shall not be entitled to be registered therein if his name has been erased from the Dentists Register on account of his having been convicted of a felony, misdemeanour, crime or offence or having been found guilty of infamous or disgraceful conduct in a professional respect.

5. In the event of any examinations of a new university at any time hereafter created in the Irish Free State becoming qualifying examinations in medicine, surgery and midwifery for the purposes of the Medical Acts that university shall have the same powers of holding examinations for the purposes of testing the fitness of persons to practise dentistry or dental surgery, and of granting certificates of such fitness for the purpose of registration in the Dentists Register as if it were a medical authority for the purposes of section 18 of the Dentists Act, 1878.

6.—(1) With a view to preventing the holding of simultaneous inquiries—

- (a) The Dental Board shall report to the Irish Free State Dental Board every case in which they propose, in connection with the exercise of their disciplinary powers, to hold an inquiry into the conduct in Great Britain or in Northern Ireland of any person registered in the Irish Free State Dentists Register, and the Irish Free State Dental Board shall report to the Dental Board every case in which they propose, in connection with the exercise of their disciplinary powers, to hold an inquiry into the conduct in the Irish Free State of any person registered in the Dentists Register;
- (b) The Dental Board upon receipt by them of any such report as aforesaid from the Irish Free State Dental Board, shall have regard to the desirability of postponing inquiry by them into the matter to which such report relates until the inquiry to which such report relates by the Irish Free State Dental Board is completed;
- (c) The Irish Free State Dental Board upon receipt by them of any such report as aforesaid from the Dental Board, shall have regard to the desirability of postponing inquiry by them into the matter to which such report relates until the inquiry to which such report relates by the Dental Board is completed.

(2) The Dental Board shall report to the Irish Free State Dental Board every case in which disciplinary action

resulting in erasure from the Dentists Register is taken by them against a person registered in the Irish Free State Dentists Register, and the Irish Free State Dental Board shall report to the Dental Board every case in which disciplinary action resulting in erasure from the Irish Free State Dentists Register is taken by them against a person registered in the Dentists Register.

7. His Majesty's Governments in Great Britain and the Irish Free State respectively shall as soon as possible introduce into their respective Parliaments such legislation as may be necessary to give statutory effect to this agreement, and this agreement shall not take effect until such legislation in both such Parliaments shall have been passed into law.

Signed on behalf
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Signed on behalf
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P. MCGILLIGAN.

Signed on behalf
of
Northern Ireland.
R. D. BATES.

CHAPTER 40.

An Act to make provision incidental to and consequential on the dissolution of the legal union between the Church of England and the Church of England in India. [22nd December 1927.]

WHEREAS by the Indian Church Measure, 1927, provision is made for the dissolution of the legal union between the Church of England and the Church of England in India :

And whereas for the purpose of giving effect to certain changes consequential on the said Measure it is expedient that the provisions hereinafter contained should be enacted by Parliament :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Interpreta-
tion.

1. In this Act—

The expression “date of severance” means such day as may be fixed under the said Measure as the date for the dissolution of such union as aforesaid;